

Shyam Vijay Sharma vs State Of U.P. And 2 Others on 15 July, 2022

HIGH COURT OF JUDICATURE AT ALLAHABAD

?Court No. - 82

Case :- APPLICATION U/S 482 No. - 9823 of 2022

Applicant :- Shyam Vijay Sharma

Opposite Party :- State Of U.P. And 2 Others

Counsel for Applicant :- Ajeet Kumar Chaurasiya

Counsel for Opposite Party :- G.A.

Hon'ble Brij Raj Singh,J.

Heard Sri Ajeet Kumar Chaurasiya, learned counsel for the applicant and the learned A.G.A. for the State and perused the record.

The present 482 Cr.P.C. application has been filed with a prayer to quash the order dated 03.03.2022 passed by the court of Principal Judge, Family Court, Gautam Budh Nagar, in Original Case No./Criminal Misc. Case No. 109 of 2022, under Section 125 Cr.P.C., with a further prayer to stay the further proceedings of the aforesaid case.

Counsel for the applicant has challenged the notice issued by the Family Court under Section 125 Cr.P.C. on the ground that under the proceedings under Section 13-B of Hindu Marriage Act, Rs.7,00,000/- has been advanced as one-time settlement.

Be that as it may, all pleadings are available to the applicant before the court below and at the moment, I cannot pre-judge or pre-determine the question/objection raised by the applicant.

The application is dismissed.

It is, however, left open for the applicant to take any legal recourse as available under the law before the appropriate forum.

Order Date :- 15.7.2022 Arun K. Singh